THE MARINE ENVIRONMENT PROTECTION COMMITTEE, RECALLING Article 38(a) of the Convention o n the International Maritime Organization concerning the functions of the Committee, NOT ING article 16 of the International Convention for the Prevention of Pollution from Ship s, 1973 (hereinafter referred t o as the "1 973 Conven tion"), and article VI of the Pro tocol of 1978 relating t o th e International Convention for the Prevention of Pollution from Ships, 1973 (hereinafter referred to as the "1978 Protocol"), which confer upon the appropriate body of the Organization the function of considering and adopting amendments to the 1973 Convention, as modified by the 1978 Protocol (HARPOL 73/78), - referred to a s the "1978 Protocol"), which confer upon the appropriate body of the Organization the f unction of considering and adopting amendments to the 1973 Convention, as modified by th e 1978 Protocol (HARPOL 73/78), RECALLING the objec tive of HARPOL 73/78 t o achieve the compl e te elimination of intentional pollution of the marin e environ ment by oil, DESI RING in this regard to reduce even further operational pollution from ships, HAVING CONS IDERED, at its thirty-second session, amendments t o the 1978 Protocol proposed and circ ulated in acc or dan ce with arti cle l6(2)(a) of the 1973 Convention, 1.

ADOPTS, in ac cordance with arti cle 16(2)(d) of the 1973 Convent ion, amendments to the Annex of the 1978 Protocol, th e text of which is set out in the Annex to the pre sen t resoluti on; 2.

DETER."IINES, in accordance with article 16(2)(f)(iii) of th e 1973 Convention, that the amendments shall be deemed t o hav e been accepted on 6 January 1993, unless prior to th is date one third or more of the Parties, or the Parties the combined merchant fleets of which co nstitute fifty per cent - 1973 Convention, that the amendments shall be deemed t o hav e been accepted on 6 January 1993, unless prior to this date one third or more o f the Parties, or the Parties the combined merchant fleets of which co nstitute fifty pe r cent or more of the gross tonnage of the world's mercha nt fleet, have communicated to the Organization their objections to the amendments; 3.

INVITES the Parties t o note that, in ac co rdan ce with artic le 16(2)(g)(i i) of the 1 973 Convention, the amendme nts shall enter into forc e o n 6 July 199 3 upon their acce ptance in accordance with paragraph 2 above; 4.

REQUESTS the Secretary-General, in conformity with article 16(2)(e) of the 1973 Conventi on, to transmi t to all Parties to HARPOL 73/78 certi fied copies of the present resolut ion and the text of the amendments contained in th e Annex; 5 .

FURTHER REQ